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EMPLOYEE HANDBOOK

AT-WILL DISCLAIMER

ALL EMPLOYEES OF THE COMPANY ARE EMPLOYEES-AT-WILL. THIS HANDBOOK OR ANY OF ITS SPECIFIC PROVISIONS ARE NOT TO BE CONSIDERED A CONTRACT OF EMPLOYMENT OR AS OTHERWISE ALTERING EMPLOYEE'S AT-WILL EMPLOYMENT STATUS IN ANY MANNER OR RESPECT. THE COMPANY RESERVES THE RIGHT TO TERMINATE ANY EMPLOYEE'S EMPLOYMENT AT ANY TIME FOR ANY OR NO REASON, WITH OR WITHOUT CAUSE AND WITH OR WITHOUT PRIOR NOTICE.

NOTHING IN THIS EMPLOYEE HANDBOOK IN ANY WAY CREATES AN EXPRESS OR IMPLIED CONTRACT OF EMPLOYMENT. THIS EMPLOYEE HANDBOOK MAY BE AMENDED, MODIFIED, OR TERMINATED AT ANY TIME. FURTHER, THE COMPANY RESERVES THE RIGHT TO EXERCISE TOTAL DISCRETION IN THE APPLICATION OF THIS HANDBOOK AND ITS SPECIFIC PROVISIONS.

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ACKNOWLEDGEMENT: I hereby acknowledge my status as an at-will employee of the Company, receipt of this Handbook, and understand it replaces and supersedes all previously issued handbooks, policies, procedures, and practices.

Signature: _____ **Date:** _____

Printed Name: _____

**THIS EMPLOYEE HANDBOOK SUPERSEDES AND REPLACES ALL PREVIOUS EMPLOYEE MANUALS, HANDBOOKS OR PERSONNEL POLICIES, MEMORANDA, ETC.
REVISED AND EFFECTIVE AUGUST 2024.**

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1.0 WELCOME

Welcome to the Company! We are optimistic about the future and hope that your employment with us will be mutually rewarding and challenging. We have been fortunate to work with the finest individuals and companies across a wide range of commercial industries, in South Carolina, North Carolina, Georgia, and Florida. We partner with companies that share our integrity and commitment to create premier developments and businesses that we can be proud of collectively.

This handbook has been prepared for you the employees. As an employee of the company, you should review the handbook and become familiar with all of the policies. This handbook was developed to describe some of the expectations of our employees and to outline the policies, programs, and benefits available to eligible employees. Employees should familiarize themselves with the contents of the employee handbook as soon as possible. Situations may arise that are not covered, either directly or indirectly, by these policies. In such instances, the Company will fairly determine its policy on a case-by-case basis. The Company reserves the right to revise, supplement, or rescind any policies or portion of the handbook from time to time as it deems appropriate, in its sole and absolute discretion.

Please take the time now to read this handbook carefully. Sign the acknowledgment at the end to show that you have read, understood, and agree to the contents of this handbook, which sets out the basic rules and guidelines concerning your employment. This handbook supersedes any previously issued handbooks or policy statements dealing with the subjects discussed herein.

The Company reserves the right to interpret, modify, or supplement the provisions of this handbook at any time. Please understand that no employee handbook can address every situation in the workplace.

If you have questions about your employment or any provisions in this handbook, contact Human Resources.

We wish you success in your employment here!

2.0 PERSONNEL RECORDS & INTRODUCTORY PERIOD

2.1 EMPLOYMENT APPLICATIONS

The Company relies upon the accuracy of information contained in the employment application, as well as the accuracy of other data presented throughout the hiring process and employment. Any material misrepresentations, falsifications, or omissions in any of this information or data, may result in the employer's exclusion of the individual from further consideration for employment or, if the person has been hired, termination of employment.

2.2 EMPLOYMENT REFERENCE CHECKS

To ensure that individuals who join the organization are well qualified and have a strong potential to be productive and successful, it is the policy that the Company reserves the right to check if necessary, the employment references of all applicants upon the hiring process.

2.3 JOB DESCRIPTIONS

The company attempts to maintain a job description for each position. Job descriptions prepared by the Company serve an outline only. Due to business needs, you may be required to perform duties that are not within your written job description. Furthermore, the company may have to revise, add to, or delete from your duties per business needs with or without advance notice to employees.

If you do not have a current copy of your job description or have any questions regarding your job description or the scope of duties, please speak with your manager.

2.4 EMPLOYEE AGREEMENTS/ OFFER LETTERS

Upon hire every employee will receive either an offer letter or employee agreement that outlines the terms of their employment with the company. This agreement will also serve their job title and such additional or different position or positions as the Company may determine in its sole discretion. Employees who accept employment with the Company upon the terms set forth will agree to devote all Employee's time, energy and ability to the interests of the Company, and to perform Employee's duties in an efficient, trustworthy and business-like manner.

2.5 FORM I-9 AUTHORIZATION/E-VERIFY

This organization is committed to employing only United States citizens and aliens who are authorized to work in the United States and does not unlawfully discriminate on the basis of citizenship or national origin.

In compliance with the Immigration Reform and Control Act of 1986, each new employee, as a condition of employment, must complete the Employment Eligibility Verification Form I-9 and present

documentation establishing identity and employment eligibility. Former employees who are rehired must also complete the form if their previous I-9 is no longer retained or valid.

In addition, the Company uses the E-Verify program to confirm immigration status.

2.6 INTRODUCTORY PERIOD

Your first 60 days of employment are very important to you as well as to the Company and are viewed as an introductory period. The Company uses this period to evaluate your capabilities, work habits, and overall performance. It is during this period that you are becoming familiar with your new job and developing work patterns that may influence your future career development. Nothing that occurs during or after this period should be construed to change the nature of the "at-will" employment relationship.

At the same time, your supervisor is also evaluating your performance carefully to determine if you are the right person for the position. Although it is everyone's hope that you will receive a positive evaluation during this period, a negative evaluation could result in termination of your employment. At the end of this period of time, or at any time during this period, an employee may be offered regular, full-time employment. This or any evaluation received is not necessarily a guarantee that an increase in pay will be given. All pay increases are strictly merit based and at the discretion of management.

2.7 TRAINING PROGRAM

In most cases, and for most departments, training employees is done on an individual basis by the department manager. Even if you have had previous experience in the specified functions of your job duties, it is necessary for you to learn our specific procedures, as well as the responsibilities of the specific positions. If you feel you require additional training, consult your manager.

3.0 EMPLOYEE CLASSIFICATIONS

The following terms are used to describe employees and their employment status:

Exempt Employees – An individual who is exempt from the overtime provisions of the Fair Labor Standards Act (FLSA) because they are classified as an executive, professional, administrative or outside sales employee, and meets the specific criteria for the exemption.

Nonexempt Employees - An individual who is not exempt from the overtime provisions of the FLSA and is therefore entitled to overtime pay for all hours worked beyond 40 in a workweek (as well as any state overtime provisions). Nonexempt employees may be paid on a salary, hourly or other basis.

Regular Employee – Employees who are hired to work on a regular schedule. Such employees can be either full-time or part-time. The distinction between full-time and part-time depends upon the number of hours that an employee works.

Full-Time – Employees who are not temporary employees, independent contractors, or independent consultants and who are regularly scheduled to work at least 30 or more hours per week.

Part- Time – Employees who are not temporary employees, independent contractors, or independent consultants and who are regularly scheduled to work less than 30 hours per work week.

Temporary Employees – Employees who are hired as interim replacements to temporarily supplement the workforce or to assist in the completion of specific project. Employment assignments in this category are of limited duration and all temporary employees are at-will, regardless of the anticipated duration of the assignment.

Independent Contractor or Consultant – These individuals are not employees of the Company and are self-employed. An independent contractor or consultant is engaged to perform a task according to their own methods and is subject to control and direction only as to the results to be accomplished. Independent contractor or consultants are not entitled to benefits.

Each employee will be advised of his or her status at the time of hire and any change in status. Regardless of the employee's status, the employee is employed at-will and the employment relationship can be terminated by the Company or the employee at any time, with or without cause.

4.0 EEO STATEMENT, AMERICANS WITH DISABILITIES ACT POLICY, & PREGNANCY RELATED MEDICAL ACCOMMODATIONS

4.1 EQUAL EMPLOYMENT OPPORTUNITY POLICY

In order to provide employment and advancement opportunities to all individuals, the Company strives to base employment decisions on merit, qualifications, and abilities. The Company does not discriminate in employment opportunities or practices on the basis of race, color, religion, gender, gender identity, sexual orientation, pregnancy, national origin, age, disability or any other characteristic protected by law.

Any employee with questions or concerns about any type of discrimination in the workplace is encouraged to bring these issues to the attention of their immediate supervisor or the CEO, President, or Executive Vice-President. Employees can raise legitimate concerns and make reports without fear of reprisal. Anyone found to be engaging in any type of unlawful discrimination will be subject to disciplinary action, up to termination of employment in the Company's sole discretion.

4.2 AMERICANS WITH DISABILITIES ACT POLICY

The Company complies with the Americans with Disabilities Act ("ADA") and strives to provide a work environment free from discrimination against qualified individuals with disabilities. We adhere to applicable federal, state, and local laws to offer equal employment opportunities to qualified individuals with disabilities. Reasonable accommodations may be provided for qualified individuals with disabilities unless that accommodation produces an undue hardship or a direct threat to health or safety.

Qualified individuals with disabilities should notify the Company of the need for such an accommodation, in writing. Upon receipt of an accommodation request, the Company may meet with the requesting employee to discuss and identify the limitations of the employee's ability to perform the essential functions of his/her job and potential accommodation that the Company might make to help overcome those limitations without undue hardship to the Company or a direct threat to health or safety. The Company may also request one or more doctor's input, or the input of other professionals, with any medical records necessary to make decisions regarding the qualification of a condition as a disability under the ADA, specific job restrictions, the ability to continue or return to work with or without reasonable accommodation, and any other issues or recommendations that relate to the request for accommodation. However, the Company has the ultimate discretion as to whether a request for accommodation is reasonable.

4.3 PREGNANCY AND RELATED MEDICAL CONDITIONS ACCOMMODATIONS

The Company complies with the South Carolina Pregnancy Accommodations Act, the Pregnant Workers Fairness Act, the PUMP Act, and other similar state and federal laws where applicable, and will consider requests for reasonable accommodations for pregnancy-related medical conditions in accordance with those laws.

5.0 ATTENDANCE POLICY

Punctuality and regular attendance are essential to the successful operation of the Company's business. When you accept a position with our Company you assume obligations. One of those obligations is to perform the duties of your position during the times specified. You are expected to be punctual and keep absences to a minimum. Failure to report, unjustified or excessive absence or tardiness may result in discipline, up to and including discharge from employment. Additionally, punctuality and attendance are factor that may be taken into account when determining promotions, salary increases and qualification for other benefits.

Due to the nature of our business, certain positions will be required to work remotely or offsite. If you are classified as one of those employees, you must be actively performing your job duties and available during normal business hours to receive and respond to timely phone calls, emails, and texts. Failure to no be available or perform you job duties may result in discipline up to and including termination.

You may work from home on days only at the manager's or supervisor's discretion. You must inform your manager or supervisor in a timely manner of your intentions and reasoning.

Classifications of Absenteeism

Absenteeism generally refers to a circumstance in which an employee is habitually absent or not present at work during normally scheduled work hours. The employee's absences may be either scheduled or unscheduled.

- *Scheduled*: Absences typically scheduled in advance include vacation, medical appointments, military service, family activities, jury duty, funerals, and other events which cannot be scheduled outside of regular work hours.
- *Unscheduled*: Absences typically occur as a result of illness, family emergencies, transportation emergencies, family member illness and/or death, and household emergencies such as flooding.

Supervisors may designate absences are excused or unexcused.

- **Excused**: An excused absence is one which is scheduled and approved by the employee's manager in advance of the absence for such events as vacation, medical appointments, military service, jury duty, funerals, and events or activities which are scheduled outside of regular work hours. Unscheduled absences for illness, family member illness or death, and similar unanticipated circumstances may also be treated as "excused." Typically, there is no disciplinary consequence for an excused absence, unless the employee is habitually absent.
- **Unexcused**: An unexcused absence is one that is not approved by an employee's manager or embraced in the employer's policies and procedures. It may be more likely to lead to disciplinary consequences than an excused absence.

No-Call/No-Show - No-call/no-show refers to those instances where an employee does not call in advance and fails to show during his/her workday schedule as well as when an employee calls in late but subsequently fails to show during his/her entire shift. Employees are expected to give the Company as much advance notice of a call out as possible, and in no event shorter than 24 hours prior to your shift, unless circumstances require it (i.e., person becomes sick 8 hours before shift).

No call/no show creates an administrative burden on fellow employees. It also impacts our commitment in providing exceptional service to our clients. The first instance of a no-call/no-show may result in corrective action. The second separate offense may result in termination of employment with no additional corrective action steps. Any no-call/no-show lasting three consecutive days is considered job abandonment and could result in immediate termination of employment, which will be designated as a voluntary resignation. If the employee has already been issued corrective action for attendance when a no-call/no-show incident occurs, the corrective action process may be accelerated up to and including termination of employment.

6.0 HARASSMENT AND/OR DISCRIMINATION POLICY

The Company absolutely prohibits and will not tolerate any illegal discrimination or harassment in its workplace. Accordingly, all employees are expected to maintain a productive work environment free from harassing, discriminatory or disruptive activity. No form of harassment or discrimination will be tolerated, including, but not limited to, harassment or discrimination for the following reasons: race, color, religion, sex, pregnancy, age, national origin, physical or mental disability, military status, gender identity, or sexual orientation.

The Company is committed to working to prevent such conduct, to investigate complaints of inappropriate conduct, and to remedy violations of this policy. If you reasonably believe that you have been subjected to any form of harassment, you should (1) affirmatively inform the offender/harasser that such conduct is unwelcome; and you must (2) report the incident immediately to your supervisor, HR, or the CEO. Further, if you witness harassing or discriminatory behavior, you are required to report it immediately to your supervisor, CEO, or Director of Human Resources. Employees should not allow any inappropriate situation to continue by not reporting it, regardless of who is creating that situation. No employee is exempt from the requirement to report conduct that may be in violation of this policy.

The Company will investigate complaints of harassment and/or discrimination and will make every attempt at being mindful of an employee's requests for discretion. Notwithstanding, the Company cannot promise complete confidentiality. The Company is required to investigate promptly and thoroughly, and this process may include interviewing relevant parties. Should an investigation disclose a violation of this policy, the Company will undertake appropriate corrective action designed to rectify the conduct and prevent any recurrence. Under no circumstances will the Company tolerate any retaliation against an individual for making a complaint, in good faith, under this policy or for participating in the investigation of any such complaint.

Any employee who engages in any prohibited conduct may be subject to discipline up to and including termination, in the sole discretion of the Company.

6.1 DEFINITIONS OF DISCRIMINATION AND HARASSMENT

"Discrimination" is defined as any unfavorable treatment that is based on race, color, sex, sexual orientation, gender identity, religion, national origin, disability, pregnancy, veteran or military status, age and/or any other categories protected by federal, state, or city ordinances.

"Harassment" is defined as unwelcome verbal or physical conduct that denigrates or shows hostility or aversion toward an individual because of his or her race, color, sex, religions national origin, disability, pregnancy, veteran or military status, age, and/or any other categories protected by federal, state, or city ordinances and that:

- Has the purpose or effect of creating an intimidating, hostile, or offensive working environment.
- Has the purpose or effect of unreasonably interfering with an individual's work performance.
- Otherwise adversely affects an individual's employment opportunities.

Examples of harassing and/or discriminatory conduct include, but are not limited to the following:

- Verbal comments, slurs, negative stereotyping, or threatening, intimidating, or hostile acts that relate to race, color, sex, religion, national origin, disability, pregnancy, veteran or military status, age, and/or any other categories protected by federal, state, or city ordinances.
- Written or graphic material that denigrates or shows hostility or aversion toward an individual or group because of race, color, sex, religion, national origin, disability, pregnancy, veteran or military status, age, and/or any other categories protected by federal, state, or city ordinances and

that is placed on walls, bulletin boards, or elsewhere on our premises or is circulated in the workplace. This is mainly an example of discrimination.

- Unwelcome requests for sexual favors or sexual advances.
- Verbal harassment, comments directed towards a person's race, color, sex, religion, national origin, disability, pregnancy, veteran or military status, age, and/or any other categories protected by federal, state, or city ordinances or such as sexual innuendoes, suggestive comments, jokes of a sexual nature, sexual propositions or threats.

Because of our strong disapproval of offensive or inappropriate behavior at work, all employees must avoid any action or conduct which could be viewed as harassment of any kind.

Sexual Harassment

Sexual harassment is a form of sex discrimination, which is a violation of Title VII of the Civil Rights Act of 1964. The Equal Employment Opportunity Commission (EEOC) has defined sexual harassment as:

Unwelcome sexual advances, requests for sexual favors, and other verbal or physical conduct of a sexual nature constitute sexual harassment when:

- Submission to such conduct is made explicitly or implicitly a term or condition of an individual's employment.
- Submission to or rejection of such conduct by an individual is used as a basis for employment decisions affecting an individual.
- Such conduct has the purpose or effect of substantially interfering with an individual's work performance or creating an intimidating, hostile, or offensive working environment.

Examples of sexual harassment include but are not limited to the following:

- Unwanted physical contact or conduct including flirting, touching, brushing the body, sexual advances or propositions.
- Verbal harassment of a sexual nature, such as lewd comments, sexual jokes or innuendo, jokes about gender-specific traits, or references to appearances.
- Insulting or sexually suggestive written, recorded or electronically transmitted messages.
- Display in the workplace of demeaning, insulting, intimidating, or sexually suggestive objects, pictures or photographs.

6.2 REPORTING HARASSMENT AND/OR DISCRIMINATION

If at any time you feel that you or any other employee has been subjected to discrimination or harassment of any nature, you must report the incident immediately to your supervisor, CEO, or Director of Human Resources. If, for any reason, you do not feel comfortable notifying your immediate supervisor about the matter or if your supervisor is the offending party, you may notify any member of the management team. Employees are encouraged to make any such complaints in writing.

Early reporting and intervention have proven to be the most effective methods for resolving actual and/or perceived incidents of harassment and/or discrimination in the workplace. Therefore, while no specific time period for reporting harassment and/or discrimination has been established, the Company strongly urges all employees to promptly report any and all complaints or concerns immediately or as soon after as possible so that appropriate action can be taken as soon as possible and to prevent unwelcome conduct from becoming pervasive and/or severe.

6.3 RETALIATION

The Company prohibits any form of retaliation against any employee who reports a suspected incident of discrimination and/or harassment or who cooperates in an investigation of any such conduct. Any individual who violates this policy or retaliates against an employee in any way may be subject to disciplinary action, up to and including termination, in the sole discretion of the Company.

6.4 FALSE ACCUSATIONS

Retaliation or discrimination against an employee for reporting or complaining about harassment and/or discrimination is prohibited. However, the Company will not tolerate false accusations because they may have serious effects on innocent individuals. Making false accusations is a form of misconduct and may result in serious impairment of our efforts to administer this policy properly and effectively for the benefit of all employees. Accordingly, such misconduct may result in disciplinary action, up to, and including termination, in the sole discretion of the Company.

6.5 INVESTIGATIONS

The Company will take the necessary steps to promptly and impartially initiate an investigation of a discrimination and/or harassment claim and will conduct its investigation in as confidential and timely manner as possible. Once a resolution of each complaint is reached, the Company will then communicate its findings to the employee and any the other parties involved.

All complaints of harassment and/or discrimination will be treated with discretion and as confidentially as possible, except as necessary to investigate the complaint or as required by law. Accordingly, the Company will attempt to investigate and resolve complaints of harassment and/or discrimination in a discrete manner. However, confidentiality cannot be guaranteed. When a supervisor, the CEO, or any other member of management is notified of alleged harassment and/or discrimination an investigation will take place as promptly as possible, which may involve interviewing relevant parties. Refusal to participate in an investigation may lead to disciplinary action up to and including termination.

6.6 RESOLUTION OF COMPLAINTS OF HARASSMENT AND/OR DISCRIMINATION

Misconduct constituting harassment, discrimination, and/or retaliation may be dealt with promptly and appropriately with the Company retaining the right to exercise discretion in deciding whether disciplinary action, up to and including termination, is appropriate. The Company may, within its sole discretion, take responsive action which it believes is appropriate under the circumstance. Such action

may include any warning or disciplinary action, up to and including immediate termination, as The Company may decide in its sole discretion.

IMPORTANT NOTICE TO ALL EMPLOYEES: Employees who have experienced conduct they believe is contrary to this policy have an obligation to take advantage of the complaint process described in this policy. An employee's failure to fulfill this obligation and to avail themselves of the protections provided in this policy could affect his or her rights in pursuing future legal action.

7.0 DRUG AND ALCOHOL POLICY

The Company considers drug and alcohol abuse a serious matter that will not be tolerated. The Company absolutely prohibits employees from using, selling, possessing, or being under the influence of illegal drugs, alcohol, or a controlled substance or prescription drug not medically authorized while at their job, on Company property, or while on work time.

Therefore, it is Company policy that:

1. You may not report to work under the influence of alcohol, illegal drugs, or any controlled substance or prescription drug not medically authorized.
2. You may not possess or use alcohol, illegal drugs, or any controlled substance or prescription drug not medically authorized while on company property or on company business. We also caution against use of prescribed or over-the-counter medication, which can affect your ability to perform your job safely.

Reasonable suspicion

1. The Company will test employees for the presence of illegal substances or alcohol upon reasonable suspicion.

Post-Accident Drug Testing

1. In addition to the above, the Company will require employees to undergo testing immediately or as soon as practicable after any accident or incident in the workplace.

A violation of this policy may result in disciplinary action, up to and including termination of employment.

8.0 POLICY AGAINST VIOLENCE

The safety and security of our employees, clients, vendors, contractors, and the general public is of the highest importance to the Company. The Company is committed to working with our employees to provide a work environment free from violence, intimidation, and other disruptive behavior. Violating this policy may subject you to criminal charges as well as discipline up to and including immediate termination of employment.

8.1 Zero Tolerance Policy

The Company has a zero-tolerance policy regarding workplace violence and will not tolerate acts or threats of violence, harassment, intimidation, and other disruptive behavior, either physical or verbal, that occurs in the workplace or other areas. This applies to management, co-workers, employees, and non-employees such as contractors, customers, and visitors.

Workplace violence can include oral or written statements, gestures, or expressions that communicate a direct or indirect threat of physical harm, damage to property, or any intentional behavior that may cause a person to feel threatened.

8.2 Prohibited Conduct

Prohibited conduct includes, but is not limited to:

- Physically injuring another person.
- Threatening to injure a person or damage property by any means, including verbal, written, direct, indirect, or electronic means.
- Taking any action to place a person in reasonable fear of imminent harm or offensive contact.
- Possessing, brandishing, or using a firearm on Company property or while performing Company business except as permitted by state law.
- Violating a restraining order, order of protection, injunction against harassment, or other court order.

8.3 Reporting Incidents of Violence

Report to your supervisor, in accordance with this policy, any behavior that compromises our ability to maintain a safe work environment. All reports will be investigated immediately and kept confidential, except where there is a legitimate need to know. You are expected to cooperate in any investigation of workplace violence.

8.4 Retaliation

Victims and witnesses of workplace violence will not be retaliated against in any manner. In addition, you will not be subject to discipline for reporting a threat, or for cooperating in an investigation.

If you initiate, participate, are involved in retaliation, or obstruct an investigation into conduct prohibited by this policy, you will be subject to discipline, up to and including termination. If you believe you have been wrongfully retaliated against, immediately report the matter to your supervisor.

9.0 DRESS CODE POLICY

Dress, grooming, and personal cleanliness standards contribute to the morale of all employees and affect the business image that the Company presents to customers and visitors. During business hours or when representing the Company, you are expected to present a clean, neat, and tasteful appearance. You should dress and groom yourself according to the requirements of your position and accepted social standards. This is particularly true if your job involves dealing with clients in person. The Company will consider all requests for reasonable accommodations from this Policy in accordance with applicable laws, and requests should be made to the employee's supervisor or Director of Human Resources.

This policy addresses specific expectations and includes guidelines for dress and appearance for the Company's employees. The Company reserves the right to determine what is acceptable or not acceptable in terms of professional image. Employees must recognize there is a difference between fashion for home or casual events and professional work attire. Team members must exercise good judgment in selecting appropriate dress for work.

There will be days when the Company will determine what dress is best fit for the day (Business Casual, Business Professional, Casual Friday). The company will also recognize current business fashion trends and ensure they are in line with current dress code. The Company will recognize the following dress codes based on day and position, and reserves the right to make exceptions when necessary:

1. Business casual
 - a. Denoting a style of clothing that is less formal than traditional business wear but is still intended to give a professional and business-like impression. All clothing shall be appropriate in size for the employee's frame, and shall be cleaned, pressed, and in good condition.
 - i. Examples include dress shirt, polo shirt, knit shirt, sweater, or blouse (no t-shirts), nice pants, or tasteful jeans (non-ripped), capris, calf length slacks, gauchos, culottes.
2. Business Professional
 - a. Denoting a more formal style of professional clothing.
 - i. Examples include Business Suits with ties, pant suites, business dress with or without jacket, business professional shoes.
3. Grooming
 - a) Good personal hygiene, regular bathing and good oral hygiene.
 - b) Use of a deodorant.
 - c) Clean attire daily.
 - d) Because of fragrance allergies/sensitivities among internal and external customers, perfume, cologne, after-shave should be of minimal use.

4. Jewelry:
 - a) Any jewelry worn should be in good taste and consistent with the safety and professional work environment. No jewelry will be allowed that interferes with and/or poses a safety or health risk to employees or guests.
5. Inappropriate Clothing: Inappropriate clothing includes, but is not limited to:
 - a) Shorts
 - b) Mini-skirts, biking shorts
 - c) Shirts with suggestive wording or pictures
 - d) Sweatshirts, T-shirts (**unless company branded**), tank tops
 - e) Sweatpants
 - f) Gym pants
 - g) Workout clothing
 - h) Hats (**unless company branded**), bandannas, or other headwear
 - i) See-through or low-cut blouses
 - j) Halter tops, bare backs or midriffs
 - k) Clothing which is not appropriate to body size, i.e., extreme “baggy” or “tight”
6. Shoes:
 - a) Footwear must be clean, in good repair, and of a style that does not hinder work performance or personal safety.
 - b) Shoes that are not appropriate include but are not limited to flip flops, slippers, and moccasins.
7. Hair:
 - a) Hair must be neat in appearance at all times and must not detract from the total professional appearance of the employee.
 - b) Hair must be clean, combed, and neat.
 - c) Mustaches, beards, goatees and sideburns are acceptable only if they are clean and neatly trimmed.
 - d) Any wigs must meet the other provisions of this policy and look neat and professional.

Employees that violate the dress code policy will be sent home to change their work attire. Employees who are sent home must “punch out” when leaving the premises and “punch in” when returning to work and will not be compensated for any work time missed because of failure to comply with this policy. Employees in violation of the Dress Code Policy will be disciplined accordingly.

10.0 STANDARDS OF CONDUCT

To ensure orderly operations and provide the best possible work environment, the Company expects employees to follow rules of conduct that will protect the interests and safety of all employees and the Company. It is essential that all employees follow any rules issued by management.

It is not possible to list all the forms of behavior that are considered unacceptable in the workplace; the examples below indicate behavior that may result in disciplinary action, up to and including termination of employment:

- Theft or inappropriate removal or possession of company or guest property
- Falsification of timekeeping records
- Working under the influence of alcohol or illegal drugs
- Fighting or threatening violence in the workplace
- Insubordination or other disrespectful conduct
- Gossip or spreading false information
- Sexual or other unlawful unwelcome harassment
- Excessive absenteeism or any absence without notice
- Unsatisfactory performance or conduct
- Profane or abusive language in the workplace
- Violation of the Company Confidentiality Policy
- Fraternizing with a guest while on company property
- Falsifying or withholding information on your employment application that did or would have affected the hiring decision to hire you (this conduct will result in your immediate termination).
- Falsifying or withholding information in other personnel records including personnel questionnaires, performance evaluations or any other records
- Performance at work below a level acceptable or the failure to perform assigned duties
- Negligence in the performance of duties likely to cause or actually causing personal injury or property damage
- Fighting, arguing or attempting to injure another
- Destroying or willfully damaging the personal property of another, including the Company's property.
- Breach of confidentiality
- Gambling in any form on property.
- Dishonesty
- The possession, use, sale or being under the influence of drugs or other controlled substances or alcoholic beverages during working hours or on the work premises at any time in violation of the Company's policies.
- Carrying or possessing firearms or weapons on property.

Off Duty Conduct: Employees should consider themselves representatives of the Company at all times. Therefore, they are expected to conduct their affairs in a manner that does not adversely affect the Company's integrity, reputation or credibility. Illegal off duty conduct that adversely affects the employee's ability to perform one's job will not be tolerated. Employees who are not on shift/duty are not permitted to be on property after their shift.

Conflict of Interest: The Company is concerned with conflicts of interest that create actual or potential job-related concerns, especially in the areas of confidentiality, customer relations, safety, security, and morale. If there is any actual or potential conflict of interest between you and a competitor, supplier, distributor, or contractor to the Company, you must disclose it to your Manager. If an actual or potential conflict of interest is determined to exist, the Company will take such steps as it deems necessary to reduce or eliminate this conflict.

10.1 BUSINESS ETHICS

Bribery and Corrupt Practices: Improper payments to gain business advantages are never acceptable. The Company strictly prohibits employees from giving, paying, offering or promising anything of value to any person for the purpose of influencing official action or gaining an improper advantage. This prohibition applies both to activities undertaken directly by employees and to activities that may be undertaken by third parties on behalf of the Company. The Company is committed to conducting its business in compliance with all laws prohibiting bribery and other corrupt practices, including but not limited to the U.S. Foreign Corrupt Practices Act. Anti-corruption laws prohibit the Company from offering or giving “anything of value” to a government official or their family members to influence that person in his or her official duties or to encourage improper or unlawful conduct. The Company similarly prohibits all commercial bribes and kickbacks. Employees are expected to accurately record all business transactions and keep complete books and records of business expenditures.

Environment: The Company is committed to the health and safety of our guests, Team Members and business colleagues. Safety requires commitment from everyone. Each Team Member is responsible for understanding and complying with all applicable safety and health laws and guidelines. In addition, we are each responsible for identifying and responding to health and safety hazards and security concerns.

Business Courtesies: Giving or accepting gifts, meals, travel, entertainment, favors or other items of value (“business courtesies”) is often a part of building business relationships. However, these business courtesies can also improperly influence our business decisions, and they can create the appearance of impropriety. You must use common sense and good judgment to avoid even the perception that any business courtesy – even business courtesies that otherwise comply with the Company’s policies – has influenced or is intended to influence your business judgment or the business judgment of the recipient.

11.0 DISCIPLINARY PROCESS

Violation of the Company’s Standard of Conduct or any policy contained herein may result in disciplinary action including demotion, transfer, leave without pay, or termination of employment. The Company encourages a system of progressive discipline depending on the type of prohibited conduct. However, the Company is not required to engage in progressive discipline and may discipline or terminate employees who violate one of the Company’s policies, or where the quality or value of their work fails to meet expectations at any time. Again, any attempt at progressive discipline does not imply that your employment is anything other than on an “at-will” basis.

In appropriate circumstances, management will first provide you with a verbal warning, then with one or more written warnings, and if the conduct is not sufficiently altered, eventual demotion or termination of employment. Your supervisor will make every effort possible to allow you to respond to any disciplinary action taken. Understand that while the Company is concerned with consistent enforcement of our policies, we are not obligated to follow any disciplinary or grievance procedure and that depending on the circumstances, you may be disciplined or terminated without any prior warning or procedure.

12.0 TERMINATIONS

Termination of employment is an inevitable part of personnel activity within any organization, with the usual reasons being resignation, discharge, and retirement. The Company will generally schedule exit interviews at the time of voluntary employment terminations.

The exit interview will afford an opportunity to discuss such issues as employee benefits, conversion privileges, repayment of outstanding debts to the Company, or return of Company-owned property. This will include keys, documents, software and the like.

The Company requests that non-exempt employees give fourteen days' notice, and exempt employees, thirty days. Final pay will be issued in accordance with applicable state law.

Upon separation, voluntary or involuntary, vacation days will not be paid out on the employee's final paycheck.

PROBLEM-SOLVING PROCEDURE

During the performance of your duties, questions or problems may arise regarding your work. The following procedure has been established for your use in solving these problems:

Step 1

Talk the problem over with your supervisor.

Step 2

In the event your supervisor can't resolve your problem to your satisfaction within a week's time, talk it over with the next higher level of supervision.

Step 3

In the event the next higher level of supervision cannot resolve your problem to your satisfaction within a week's time, talk to the CEO, President, or Executive Vice- President, who will assist you (if you so desire) in presenting it for final resolution.

We believe this procedure will ensure that your problem gets thoroughly reviewed.

Also, it is recognized that some problems may be either of a personal nature, or for some other very good reason, you prefer not to discuss it within your own department. In such case, you should consult the CEO, President, or Executive Vice-President for advice on how to handle the situation. Above all,

remember that we cannot help you solve your problem if you do not tell us about them. This procedure is your “hotline” to our management. **Please use it!**

13.0 CONFIDENTIAL INFORMATION & ELECTRONIC FACILITIES

Employee recognizes and acknowledges that all records with respect to clients, business associates, customer or referral lists, contracting parties and referral sources of the Company, and all personal, financial and business and proprietary information of the Company, its Employees, managers, and members obtained by the Employee during the term of this Agreement and not generally known in the public (the "Confidential Information") are valuable, special and unique and proprietary assets of the Company's business. The Employee hereby agrees that during the term of their employment and following the termination of this employment, whether the termination shall be voluntary or involuntary, or with or without cause, or whether the termination is solely due to the expiration of the term of their agreement, the Employee will not at any time, directly or indirectly, disclose any Confidential Information, in full or in part, in written or other form, to any person, firm, Company, association or other entity, or utilize the same for any reason or purpose whatsoever other than for the benefit of and pursuant to authorization granted by the Company. "Confidential Information" shall also include any information (including, but not limited to, technical or non-technical data, a formula, a pattern, a compilation, a program, a device, a method, a technique, a drawing, a process, financial data, financial plans, product plans, or a list of actual or potential customers) that: (i) derives economic value, actual or potential, from not being generally known to, and not being readily ascertainable by proper means by, other persons who can obtain economic value from its disclosure or use; and (ii) is the subject of efforts that are reasonable under the circumstances to maintain its secrecy. In the case of Company's business, Company's Trade Secrets shall include information or data of or about the Company, including, but not limited to, technical or non-technical data, formulas, patterns, compilations, programs, devices, methods, techniques, drawings, processes, financial data, financial plans, product plans or lists of actual or potential customers or suppliers that: (A) derives economic value, actual or potential, from not being generally known to, and not being readily ascertainable by proper means by, other persons who can obtain economic value from its disclosure or use; (B) is the subject of efforts that are reasonable under the circumstances to maintain its secrecy; and (C) any other information which is defined as a “trade secret” under applicable law.

13.1 Computer, Email, and Internet Usage Policy

The Company recognizes that use of the internet and email is necessary in the workplace, and employees are required to use both responsibly and lawfully, as unacceptable use can place The Company and others at risk for harassment, security breaches and similar issues. This policy outlines the guidelines for acceptable use of The Company’s technology systems.

This policy must be followed in conjunction with other the Company policies governing appropriate workplace conduct and behavior. Any employee who abuses the company-provided access to email, the internet, or other electronic communications or networks, including social media, may be denied future access and, if appropriate, be subject to disciplinary action up to and including termination. The

Company complies with all applicable federal, state and local laws as they concern the employer/employee relationship, and nothing contained herein should be misconstrued to violate any of the rights or responsibilities contained in such laws.

Questions regarding the appropriate use of The Company's electronic communications equipment or systems, including email and the internet, should be directed to your supervisor or the information technology (IT) department.

The Company has established the following guidelines for employee use of the company's technology and communications networks, including the internet and email, in an appropriate, ethical and professional manner.

All technology provided by The Company, including computer systems, communication networks, company-related work records and other information stored electronically, is the property of The Company and not the employee. In general, use of the company's technology systems and electronic communications should be job-related and not for personal convenience. The Company reserves the right to examine, monitor and regulate email and other electronic communications, directories, files and all other content, including internet use, transmitted by or stored in its technology systems, whether onsite or offsite. . Employees have no expectation of privacy while using the Company's computer facilities, including email and internet.

Internal and external email, voice mail, text messages and other electronic communications are considered business records and may be subject to discovery in the event of litigation. Employees must be aware of this possibility when communicating electronically within and outside the company.

The Company employees are expected to use technology responsibly, lawfully and productively as necessary for their jobs. Internet access and email use is for job-related activities; however, minimal personal use is acceptable.

Employees may not use The Company's internet, email or other electronic communications to transmit, retrieve or store any communications or other content of a defamatory, discriminatory, harassing or pornographic nature. No messages with derogatory or inflammatory remarks about an individual's race, age, sex, disability, religion, national origin, physical attributes, gender identity, sexual preference or any other protected class may be transmitted. Harassment of any kind is prohibited.

Abusive, excessively profane or offensive language and any illegal activities—including piracy, cracking, extortion, blackmail, copyright infringement and unauthorized access to any computers on the internet or email—are forbidden.

Copyrighted materials belonging to entities other than The Company may not be transmitted by employees on the company's network without permission of the copyright holder.

Employees may not use The Company's computer systems in a way that disrupts its use by others. This includes sending or receiving excessive numbers of large files and spamming (sending unsolicited email to thousands of users).

Employees are prohibited from downloading software or other program files or online services from the internet without prior approval from the IT department. All files or software should be passed through virus-protection programs prior to use. Failure to detect viruses could result in corruption or damage to files or unauthorized entry into company systems and networks.

Every employee of The Company is responsible for the content of all text, audio, video or image files that he or she places or sends over the company's internet and email systems. No email or other electronic communications may be sent that hide the identity of the sender or represent the sender as someone else. The Company's corporate identity is attached to all outgoing email communications, which should reflect corporate values and appropriate workplace language and conduct.

Nothing in this policy is intended to, nor should be construed to limit or interfere with employee rights as set forth under all applicable provisions of the National Labor Relations Act, including Section 7 and 8(a)(1) rights to organize and engage in protected, concerted activities regarding the terms and conditions of employment.

13.2 DUTY TO REPORT POLICY VIOLATIONS

Each employee has an affirmative obligation to report to the management team if he or she knows or has reason to believe that any employee is violating any provision of this Handbook.

13.3 NON-COMPETE/DUTY OF LOYALTY

Employees working for the Company may not work for any other real estate brokerage or competing company while working for the Company. Each employee owes a duty of loyalty to the Company. Employees may maintain other jobs/sources of income so long as it does not compete with or interfere with the employee's work for the Company and so long as employee does such work on their own time not while working for the Company.

13.4 PERSONAL TELEPHONE/SMARTPHONE USE

While use of personal cell phones, mobile phones, smartphones or personal digital assistants may be necessary to communicate with clients or fellow employees for business purposes, the use of mobile phones for personal reasons, such as personal texts, checking Facebook, and other personal matters should not be done during work hours. Personal calls and communication via social media must be handled on personal time (i.e. during breaks). Any employee who engages in any prohibited conduct may be subject to discipline up to and including termination, in the sole discretion of the Company.

14.0 HOURS OF WORK & PAYROLL PRACTICES

The Company's standard pay period is semi-monthly for all employees. Pay dates are the 15th and the last day of the month. If a pay period falls on a holiday, you will be paid on the previous business day. If a pay day falls on a Saturday or Sunday, paychecks will be issued the preceding Friday.

14.1 REST AND MEAL PERIODS

All rest and meal periods will be in accordance with state law.

Non-exempt employees must clock out while taking lunch breaks, smoke breaks, or other similar breaks in excess of 15 minutes, whether they are at their desk, outside of the office, or in the break area. Additionally, employees are asked to limit other breaks to once per day.

Employees must inform his or her supervisor when going to lunch, running errands, work-related travel, or other leaving the property and get pre-approval prior to leaving.

To the extent state law does not require rest and meal breaks, nonexempt employees will be provided a 15-minute rest break for every four (4) hour period of work. The time is counted and paid as time worked. Nonexempt employees scheduled to work more than 6 consecutive hours will be provided with a 30–60-minute unpaid meal period.

14.2 TIMESHEETS

Nonexempt employees must record their time on timesheets. Your supervisor will provide you with timesheet for you to keep a current record of your time at work. You are responsible for maintaining an accurate current record of your working hours. Accordingly, you must use the timesheet to record the time you begin and end work each day. You are also much record on your timesheet when you are absent from work, for any reason whatsoever.

Your timesheet is the record on which you are paid. Consequently, it is important that your timesheet be accurate and complete and not lost, falsified, or illegible. If your timesheet is lost, you may not be paid. If you become aware of a mistake on your timesheet, you must immediately inform your supervisor and/or the payroll liaison with the necessary correction. Timesheets are official business records and may not be altered without the employee's supervisor's approval and may not be falsified in any way. **Falsification of your timecard (including, but not limited to, hours worked) will result in immediate termination.**

14.3 OVERTIME PAY AND AUTHORIZATION

Exempt employees are classified as such if their salary and job duties qualify them as exempt from the overtime provisions of state and federal laws. If you are classified as exempt at the time of your hiring, you are not eligible for overtime pay as otherwise required by federal, state, or local laws. If you have a question regarding whether you are an exempt or nonexempt employees, contact your supervisor for clarification.

If you are nonexempt, you may qualify for overtime pay. All overtime must be approved in advance, in writing, by your supervisor. You must request an overtime authorization form prior to working overtime. Working unauthorized overtime may result in discipline, up to and including termination.

At certain times the Company may require you to work overtime. We will attempt to give as much notice as possible in this instance. However, advance notice may not always be possible. Failure to work overtime when requested or working unauthorized overtime may result in discipline, up to and including termination.

Overtime pay of one and one-half times your regular rate of pay is paid for any hours worked in excess of 40 hours in a workweek. Holidays, vacation days, and sick leave days do not count as time worked for computing overtime.

14.4 REQUIRED DEDUCTIONS

Federal and State laws require the Company to make certain deductions from your paycheck. These deductions must be withheld from your salary each pay period.

1. FICA/Medicare (Social Security) – The Federal Insurance Contribution Act requires that a percentage of your salary be withheld up to the current annual maximum. These withheld amounts are used to fund the Social Security System. The amount of your earnings will eventually determine the amount of your Social Security Benefits. The Company also makes a contribution equal to that of each employee to the Social Security System.
2. Federal and State Withholding Tax – Federal and State income tax laws require that deductions be made from each paycheck and paid over to the government. The amount of the tax withheld is based on an employee's income and on the number of exemptions may be changed at any time by filing a new withholding certificate with the CEO, President, or Executive Vice-President. Declaration of exemptions must be made in accordance with the IRS and State regulations.

All deductions are itemized on the statement that is attached to each paycheck you receive. In addition, statements of total taxes withheld from your pay are furnished shortly after the end of each year. These annual statements must be filed with your annual income tax returns.

14.5 WAGE GARNISHMENT

A garnishment is a court order requiring an employer to remit part of an employee's wages to a third party to satisfy a just debt. Once the Company receives the legal papers ordering a garnishment, we are required by law to continue making deductions from your check until we have withheld the full amount or until we receive legal papers from the court to stop the garnishment. Even if you have already paid the debt, we still need the legal papers to stop the garnishments.

14.6 ADDITIONAL PAYROLL DEDUCTIONS

You may authorize payroll deductions for the following:

1. Additional Withholdings for Federal or State Tax
2. Additional Deductions as required
3. Voluntary benefit deductions

14.7 DIRECT DEPOSIT

All employees are required to use direct deposit and have their paychecks deposited into a bank account of an accredited participating bank or credit union.

15.0 BENEFITS

15.1 HEALTH INSURANCE

The Company provides its regular full-time employees who have completed the 60-day introductory period the opportunity to enroll in health insurance at an additional cost. Benefits start on the first of the month following your sixty (60) days unless otherwise noted in your employment agreement. Details on medical plan benefits for eligible employees and their dependents will be made available to all eligible employees. These benefits may be canceled or changed at the discretion of the Company, unless otherwise required by law.

15.2 ADDITIONAL BENEFITS

15.2.1 Simple IRA Plan

The Company offers a voluntary IRA plan that an employee can enroll in on their first day. Additional details regarding plan matching will be discussed with Human Resources.

15.2.2 Vacation

If any employee as an individual employment agreement providing for more vacation days than are provided below, the amount of vacation set forth therein shall control.

Vacation is given to every regular full-time employee once they are employed for a full two months. Should you not use all your days in one year, you will only be allowed to carry over 5 days from previous year. The amount of vacation is generally based on length of service according to the following schedule:

- 1 - 4 Years of Service: 18 Vacation Days per year
- 5 - 9 Years of Service: 23 Vacation Days per year
- 10+ Years of Service: 28 Vacation Days per year

You must give at least two weeks' notice to your manager of your vacation plans. Employees may not take more than 5 consecutive days of vacation at any one time without prior written approval of a manager. Any conflict in vacation requests will be decided based on seniority and Company needs.

Upon separation, voluntary or involuntary, vacation days will not be paid out on the employee's final paycheck.

15.2.3 Bereavement

The Company recognizes the importance of taking leave where there is a death in the family. Employees are entitled to take up to 3 days off with pay for the funeral of an immediate relative (significant other, parent, grandparent, child, or sibling). You are entitled to 1 day for extended family. Pay during bereavement leave is based on the regular rate of pay for an 8-hour day. Authorized leave without pay is available for extended funeral matters. Vacation Days may also be taken when necessary. Employees should notify their supervisor as soon as possible when the need to take bereavement leave arises. The Company may request documentation to support absences for bereavement leave.

15.2.4 Jury Duty

The Company supports employees serving jury duty when required. Employees may request unpaid jury duty leave for the length of absence. Only exempt employees will be paid for jury service.

15.2.5 Voting Leave

If your work schedule prevents you from voting on Election Day, the Company will allow you a reasonable time off to vote. The time when you can go to vote will be at the discretion of your supervisor and consistent with any applicable legal requirements.

15.2.6 Paid Sick Leave

We understand that there are times when employees cannot perform work duties due to illness, thus the Company offers five (5) paid sick days per calendar year for all its employees. All employees must communicate with their direct manager or supervisor in a timely manner when they are going to be out sick. Any sick day(s) not used will be lost at the end of each year and start fresh at five (5) days on the beginning of each new year.

15.2.7 Holidays

The Company offers the following paid holidays each year:

- New Year's Day
- Memorial Day
- Independence Day
- Labor Day
- Thanksgiving Day

- Friday after Thanksgiving
- Christmas Eve
- Christmas Day

When a holiday falls on a Saturday, it will be observed the preceding Friday. Holidays falling on a Sunday will be observed the following Monday.

You must have satisfactorily completed the introductory period to be eligible for holiday pay. Holiday pay for full-time employees is computed at the straight time rate of eight hours. In no case may you receive more than a normal day's wage for any holiday unless you worked that day.

15.2.8 Work from Home Holidays

The following holidays are optional work from home days. Please refer to earlier section in the handbook on policy for working from home.

- Martin Luther King Day
- Juneteeth
- Veterans Day

15.2.9 Cell Phone Reimbursement

The Company has established a cell phone reimbursement plan for employees who hold positions that include the need to carry a cell phone to be available for Company business. This policy shall supersede and replace all prior agreements and understandings, oral or written, between the Company and Employees regarding cell phone reimbursement.

The Company has a company-wide cell phone reimbursement plan only for employees. 1099 and contract employees are not eligible to receive reimbursement from the company. All cell phones are the personal property of the employee. Changes in service for personal use are the employee's responsibility.

The monthly expense reimbursement is a maximum of \$50 paid via payroll. This \$50 monthly reimbursement is the maximum amount that will be paid to employees receiving reimbursement for personal cell phones, services, or related devices used for work. No additional reimbursement will be made for specific phone insurance premiums, device/ associated devices (i.e., apple watches), and Wi-Fi and internet costs, or other related costs.

15.2.10 Paid Maternity & Paternity Leave

The Company will provide up to 3 weeks of paid maternity & paternity leave to employees following the birth of an employee's child or the placement of a child with an employee in connection with adoption or foster care. The purpose of paid leave is to enable the employee to care for and bond with a newborn or a newly adopted or newly placed child. This policy will run concurrently with Family and Medical Leave Act (FMLA) leave, as applicable. (See FMLA Section 19 for additional information regarding FMLA leave).

16.0 SAFETY

The Company wants every employee to enjoy a safe workplace. Safety is everyone's responsibility. We ask for your help in maintaining hazard-free work areas. If you notice anything that could pose a safety threat, please take care of it or report it to your supervisor. Employees must comply with all safety guidelines (and rules and policies of clients when on client premises) and all requirements of OSHA (Occupational Safety and Health Act). General safety guidelines are intended to encourage employees to report unsafe conditions to their supervisor, as well as to inform employees of the workplace rights and responsibilities under OSHA. The purpose of these guidelines is to prevent accidents from occurring by immediately reporting hazardous and unsafe work conditions.

Please observe our safety rules in every phase of your work. It is up to each employee to assist our Company in maintaining a clean and safe environment and to keep their work area neat and clean and free of any safety hazards. If you should have an incident or injury or observe an unsafe condition, report it to your supervisor or HR immediately, no matter how insignificant it may seem. Your particular job requirements may include additional specific safety guidelines, which you are required to observe and practice with no exceptions. You will not be subject to reprisal or retaliation for reporting unsafe conditions to management or outside enforcement authorities.

16.1 WORKERS' COMPENSATION

The Company provides a comprehensive workers' compensation insurance program at no cost to the employees. Employees who sustain work-related injuries or illness should inform their supervisor immediately. It is vital that any on-the-job injury be reported immediately.

Employees who fail to immediately report work-related injuries may be subject to action up to and including termination.

16.2 REPORTING INJURIES

To ensure that proper attention is given and appropriate action taken when an injury occurs within the workplace, please follow these procedures:

1. Report the injury to your on-site supervisor immediately. If your supervisor is not immediately available, report to HR or other authorized person. Seek or obtain medical attention if required. All employees injured at work are encouraged to go to the Company's Workers Compensation doctor to seek treatment.
2. Report the injury within 24 hours, or as soon as practical. Workers Compensation laws require the processing of claims within reasonable time frames. All injuries/accidents **MUST** be reported promptly for claim submission. A First Report of Injury form must be provided to HR within 24 hours, or as soon as practical.
3. If you are involved in or are a witness to an incident, you should provide information in order for the appropriate report to be completed. Please be aware of the importance of immediate action in recording all details of the incident.

16.3 RETURN TO WORK PROGRAM

We are committed to providing a safe and healthy working environment for all employees. As part of this commitment, we shall make every reasonable effort to provide suitable temporary employment to any employee unable to perform their job duties as a result of workplace injury or illness. This may include modification to the employee's original position or providing an alternative position, depending on the employee's medical restrictions, providing that this does not create undue hardship to the Company. This program applies to all employees with work-related injuries and/or illnesses.

16.4 EMERGENCY EXITS

For your own safety and the safety of others, you should become familiar with exits from the building in which you work. In the event of fire or other emergency, leave the building by the nearest exit, taking any guests or other visitors with you. Stay calm and leave the building quickly.

17.0 FAMILY AND MEDICAL & MILITARY LEAVE

FAMILY AND MEDICAL LEAVE

The Company complies with the Family and Medical Leave Act ("FMLA") of 1993 and its implementing regulations. The function of this policy is to provide employees with a general description of their FMLA rights. In the event of any conflict between this policy and the applicable law, employees will be afforded all rights required by law.

An employee is eligible for up to a 12-weeks (or up to 26 weeks of military caregiver leave to care for a covered service member with a serious injury or illness) unpaid leave of absence during any 12-month period (measured by a rolling forward 12-month period) pursuant to the FMLA if the employee meets the following requirements:

1. The employee has worked for the Company for twelve (12) months or 52 weeks, which need not have been consecutive. Separate periods of employment will be counted, provided that the break in service does not exceed seven years, unless the break in service exceeding seven years is due to National Guard or Reserve military service obligations or when there is a written agreement, including a collective bargaining agreement, stating the associate's intention to rehire the employee after the service break. For eligibility purposes, an employee will be considered to have been employed for an entire week even if the employee was on the payroll for only part of a week or if the employee is on leave during the week.
2. In the 12-month period prior to the FMLA Leave request, the employee has worked at least 1,250 hours, not including time spent on paid or unpaid leave; works at a the Company location with 50 or more employees within 75 miles of that office or worksite, using available transportation by the most direct route; and the employee or an immediate family member has a qualifying event under the FMLA.

Each workweek will be a rolling workweek measured from the date an employee uses any FMLA Leave. Employees are required to exhaust all available paid leave first. By way of example only, if an employee qualifies for 12 weeks of FMLA leave and has 2 weeks of combined vacation and sick leave available, the first 2 weeks of the FMLA leave shall be paid, with the remaining 10 weeks unpaid.

Spouses employed by the same employer are jointly entitled to a combined total of 12-workweeks of FMLA Leave for the birth and care of the newborn child, for placement of a child for adoption or foster care, and to care for a parent who has a serious health condition.

To qualify as FMLA Leave under this policy, an employee must be taking leave for one of the reasons listed below:

1. The birth and care of a newborn child of the associate
2. The placement with the employee of a child for adoption or foster care
3. To care for a spouse, child, or parent with a serious health condition (physician statement required)
4. When an employee is unable to work because of a serious health condition (physician statement required)
5. Qualifying exigency leave for families of members of the National Guard and Reserves when the covered military member is on active duty or called to active duty in support of a contingency operation
6. To care for a covered family service member who has been injured or is recovering from an injury sustained while on active military duty in the Armed Forces

17.1 Leave for Serious Health Condition

An employee may take FMLA Leave because of a serious health condition that makes the employee unable to perform the functions of the employee's position. A serious health condition is defined as a condition that requires inpatient care at a hospital, hospice or residential medical care facility, including any period of incapacity or any subsequent treatment in connection with such inpatient care or a condition that requires continuing care by a licensed health care provider.

This policy covers illnesses of a serious and long-term nature, resulting in recurring or lengthy absences. Generally, a chronic or long-term health condition that would result in a period of three consecutive days of incapacity with the first visit to the health care provider within seven days of the onset of the incapacity and a second visit within 30 days of the incapacity would be considered a serious health condition. For chronic conditions requiring periodic health care visits for treatment, such visits must take place at least twice a year.

Employees with questions about this FMLA policy should consult with the Human Resources Department.

If an employee takes paid time off for a condition that progresses into a serious health condition and the employee requests unpaid FMLA Leave as provided under this policy, then the Company may designate all or some portion of related leave taken as leave under this policy, to the extent that the earlier leave meets the necessary qualifications.

17.2 Intermittent FMLA Leave:

Under some circumstances, employees may take FMLA Leave intermittently, which means taking leave in blocks of time, or by reducing their normal weekly or daily work schedule. FMLA Leave may be taken intermittently whenever medically necessary if that medical need can be best accommodated through an intermittent or reduced leave schedule. The FMLA permits an employee to take intermittent leave to care for a spouse, child or parent with a serious health condition, or when the employee is unable to work due to a serious health condition. However, if FMLA Leave is for the birth and care of a newborn or placement for adoption or foster care of a child, use of intermittent leave is subject to the Company's approval. Any employee who needs reduced or intermittent leave for planned medical treatment must make a reasonable effort to schedule the treatment so as not to disrupt the Company's operations.

The Company may temporarily transfer an employee using intermittent leave to an available alternative position with equivalent pay and benefits if the alternative position would better accommodate the intermittent or reduced schedule, when leave is foreseeable and planned, or to care for a child after birth placement for adoption or foster care.

If the employee is taking leave for a serious health condition or because of the serious health condition of a family member, then the employee should try to reach an agreement with the Company before taking intermittent leave or working a reduced hour schedule. If this is not possible, then the employee must prove that the use of intermittent leave is medically necessary.

Medical certification to support Intermittent FMLA Leave is required. The certification must include the dates and the duration of treatment, as well as a statement of medical necessity for taking intermittent leave or working a reduced schedule.

17.3 Military FMLA Leave Due to Qualifying Exigency:

An employee whose spouse, son, daughter or parent either has been notified of an impending call or order to activate military duty or who is already on active duty may take up to 12-weeks of FMLA Leave due to a qualifying exigency related to or affected by the family member's call-up or service. (Son or daughter for this type of FMLA Leave is defined the same as for child for other types of FMLA Leave except that the person does not have to be a minor.)

The qualifying exigency must be one of the following:

- a. short notice deployment;
- b. military events and activities;

- c. childcare and school activities;
- d. financial and legal arrangements;
- e. counseling;
- f. rest and recuperation;
- g. post-deployment activities; or
- h. additional activities that arise out of active duty, provided that the Company and the employee agree, including agreement on timing and duration of the leave.

The FMLA Leave may commence as soon as the individual receives the call-up notice. This type of leave would be counted toward the associate's 12-week maximum of FMLA Leave in a 12-month period.

The Company requires certification of the qualifying exigency for military family leave. An employee must respond to such a request within 15 days of the request or provide a reasonable explanation for the delay. Failure to provide certification may result in a denial of continuation of leave. This certification will be provided using the DOL Certification of Qualifying Exigency for Military Family Leave.

17.4 FMLA Leave to Care for Injured or Ill Service Member

An employee may take up to 26-weeks of FMLA Leave in a 12-month period to care for his or her spouse, son, daughter or parent or next-of-kin who is injured or recovering from an injury suffered while on active military duty and is unable to perform his or her duties as a service member. Next of kin is defined as the closest blood relative of the injured or recovering service member.

The maximum amount of FMLA Leave is 26-weeks under this category. Therefore, if an employee requires an FMLA of 12-weeks for his own serious health condition, the FMLA Leave under this section would be reduced by 12-weeks.

If a husband and wife both work for the Company and each wish to take leave to care for a covered injured or ill service member, the husband and wife may only take a combined total of 26 weeks of leave.

The Company will require certification for the serious injury or illness of the covered service member. An employee must respond to such a request within 15 days of the request or provide a reasonable explanation for the delay. Failure to provide certification may result in a denial of continuation of leave. This certification will be provided using the DOL Certification for Serious Injury or Illness of Covered Service member.

Certification of the Serious Health Condition of the Employee, Spouse, Parent or Child

The Company will request medical certification of the serious health condition and the employee must provide such certification within 15 days of the date of the request or provide a reasonable explanation for the delay. Failure to provide certification may result in denial of FMLA Leave.

Medical certification must provide the date the condition began, the expected duration of the condition and a brief statement of treatment. Medical certification will be provided using the DOL Certification of Health Care Provider for Family Member's Serious Health Condition.

If the employee is personally suffering from a serious medical condition, the certificate must state whether the employee is unable to perform work of any kind, or that the employee is unable to perform the essential functions of the associate's position.

The Company may directly contact the associate's family member's health care provider for verification or clarification purposes using a health care professional, a Human Resources professional, leave administrator or management official. The Company will not use the associate's direct supervisor for this contact. Before the Company makes this direct contact with the health care provider, the employee will be given an opportunity to resolve any deficiencies in the medical certification. In compliance with HIPAA Privacy Rules, the Company will obtain the employee's family member's permission for clarification of individually identifiable health information.

The Company has the right to ask for a second opinion if it has reason to doubt the certification, and the Company will pay for the employee's family member to get a certification from a second doctor, which the Company will select. The Company may deny FMLA Leave to an employee whose family member refuses to release relevant medical records to the health care provider designated to provide a second or third opinion. If necessary to resolve a conflict between the original certification and the second opinion, the Company will require the opinion of a third doctor. The Company and the employee will mutually select the third doctor, and the employee will pay for the opinion. This third opinion will be considered final. The employee will be provisionally entitled to FMLA Leave and benefits under the FMLA pending the second and/or third opinion.

17.5 Recertification

The Company may request recertification for the serious health condition of the employee or the associate's family member no more frequently than every 30 days and only when circumstances have changed significantly, if the Company receives information casting doubt on the reason given for the absence, or if the employee seeks an extension of his or her leave. Otherwise, the Company may request recertification for the serious health condition of the employee or the associate's family member every six months in connection with an FMLA absence. The Company may provide the associate's health care provider with the associate's attendance records and ask whether need for leave is consistent with the associate's serious health condition.

17.6 Employee Benefits While on FMLA Leave

Employees on FMLA Leave will be eligible to continue coverage under the Company medical and dental coverage, if applicable.

If an employee shares in the cost of that coverage, the employees will be required to continue to share in the cost of such coverage and must continue to make this payment while on leave, either in person or by mail. The payment must be received by the Company by the 15th day of each month. If the payment is more than 30 days late, then the employee's health care coverage may be dropped for the duration of the leave. The Company will provide notification 15 days prior to the employee's loss of coverage.

If the employee chooses not to return to work for reasons other than a continued serious health condition of the employee or the employee's spouse, parent or child, or a circumstance beyond the employee's control, the Company may require the employee to reimburse the Company the amount it paid for the employee's health insurance premium during the FMLA Leave period.

If the employee contributes to a life insurance or disability plan, the Company will continue making payroll deductions while the employee is on paid FMLA Leave (i.e., substituting accrued paid time off for FMLA Leave). While the employee is on unpaid FMLA Leave, the employee may request continuation of such benefits and pay his or her portion of the premiums, or the Company may elect to maintain such benefits during the leave and pay the employee's share of the premium payments. If the employee does not continue these payments, then the Company may discontinue coverage during the FMLA Leave. If the Company maintains coverage, the Company may recover the costs incurred for paying the employee's share of any premiums, whether or not the employee returns to work.

17.7 Reinstatement and Key Employees

Employees who return from FMLA Leave on or before the expiration date will be reinstated to the same or equivalent position they held before taking leave, in accordance with applicable law.

Key Employees: Under specified and limited circumstances and where restoration to employment will cause substantial and grievous economic injury to the Company's operations, the Company may refuse to reinstate certain highly paid "key" employees after using FMLA Leave during which health coverage was maintained. A key employee is a salaried, eligible employee who is among the highest paid ten (10%) percent of employees within 75 miles of the work site.

If an employee has taken FMLA Leave due to his/her own serious health condition, the Company may require certification from the employee's Health Care Provider that he/she is fit for duty before the employee can return from FMLA Leave.

If the Company receives medical evidence satisfactory to it that the employee will be permanently unable to safely resume all of the essential functions of his or her job, with or without reasonable accommodation, and if reassignment to a vacant position is not possible, then the employee's employment will be

terminated. The employee may be eligible for hiring consideration in the event that his or her medical condition allows.

17.8 FMLA Leave Procedure

An employee must request FMLA Leave by completing a Leave Form and submitting it to the Human Resources Department. Employees must provide sufficient information for the Company to reasonably determine whether the FMLA may apply to the leave request.

When leave is foreseeable for reasons of childbirth, placement of a child or planned medical treatment for the employee's or their family member's serious health condition, the employee must provide the Company with at least thirty (30) days advance notice or such shorter notice as is practicable (i.e. within 1 or 2 business days of learning of the need for the leave). When the timing of the leave is not foreseeable, the employee must provide the Company with notice of the need for leave as soon as practicable (i.e. within 1 to 2 business days of learning of the need for the leave).

Employees will also be required to provide: (1) Medical Certification supporting the need for leave due to a serious health condition affecting the employee or an immediate family member (form available in the Human Resources Department), as well as second or third opinions (at the Company's) as needed; and (2) Periodic reports during the FMLA Leave regarding the employee's status and the intent to return to work.

The Company will designate FMLA leave using the DOL Designation Notice within one (1) to two (2) business days of receiving notice of the need for leave, and then the employee must provide medical certification of the need for leave within fifteen (15) days of receipt of the designation. Within five (5) business days after the employee has submitted the appropriate certification form, the Human Resources manager will complete and provide the employee with a revised written response to the employee's request for FMLA leave using the DOL Designation Notice.

Employees must exhaust all available paid leave (such as Maternity, Paternity, Sick, and Vacation Days) concurrently with FMLA Leave and any such paid leave must be used first. In no event shall an employee requesting FMLA leave be entitled to more than twelve (12) weeks of leave except as specifically provided for by law.

In the event an employee requires intermittent FMLA Leave to care for an immediate family member or himself, and such Leave is for planned medical treatment, the employee must try to schedule treatment so as not to unduly disrupt the Company operations.

17.9 MILITARY LEAVE

All eligible full-time and part-time employees are granted military leave in accordance with the provisions of the Uniformed Services Employment and Re-Employment Act ("USERRA"). USERRA applies to persons who perform duty, voluntarily or involuntarily, in the "uniformed services," which

include the army, navy, marines, air force, coast guard and public health service commissioned corps, as well as the reserve components of each of these services. Uniformed service includes active duty, active duty for training, inactive duty training (such as drills), and initial active-duty training. USERRA requires the Company to reemploy service members returning from a period of service in the uniformed services. The employee must give notice to the Company that he/she is leaving his or her job for service in the uniformed services, unless providing such notice is precluded by military necessity or is otherwise impossible or unreasonable. The cumulative period of an employee's service in the uniformed services must not exceed five (5) years.

An employee requesting military leave should notify his/her supervisor and the management team as soon as possible and is also required to submit a copy of his/her orders to the management team not less than one week before leave begins, except for military emergencies where such notice is not possible.

During a military leave of less than thirty (30) days or less, an employee is entitled to continued group health plan coverage under the same conditions as if the employee had continued to work. For military leaves of a length greater than thirty (30) days, an employee may elect to continue his/her health coverage for up to twenty-four (24) months of uniformed service but may be required to pay all or part of the premium for the continuation coverage, as well as any administrative fees related thereto.

Upon return from military leave, employees must provide notice to the Company or submit an application for reemployment in accordance with applicable law and the following guidelines:

- If an employee's service is for a period of thirty-one (31) days or less, the employee must provide notice of reemployment at the beginning of the first full regular scheduled work period that starts at least eight (8) hours after the employee has returned from the location of service.
- If an employee's service is for more than thirty (30) days but less than one hundred eighty-one (181) days, the employee must apply for reemployment no later than fourteen (14) days after completing his/her service, or, if this deadline is not practicable through no fault of the employee, as soon as possible.
- If an employee's service is for longer than one hundred eighty (180) days, the employee must apply for reemployment no later than ninety (90) days after the completion of the service.

An employee who has been hospitalized or is recovering from an injury or illness incurred or aggravated in the course of military service, must report to the management team (if the service was thirty (30) days or less) or submit an application for reemployment (if the service was greater than thirty (30) days) but less than one hundred and eighty (180) days at the end of the recovery period, which may not exceed two (2) years.

18.0 SOCIAL MEDIA POLICY

The Company recognizes that the Internet provides unique opportunities to participate in interactive discussions and share information using a wide variety of social media. However, use of social media also presents certain risks and carries with it certain responsibilities. To minimize risks to the Company, you are expected to follow our guidelines for appropriate use of social media. This policy applies to all employees who work for the Company.

18.1 Guidelines

For purposes of this policy, social media includes all means of communicating or posting information or content of any sort on the Internet, including to your own or someone else's web log or blog, journal or diary, personal website, social networking or affinity website, web bulletin board or a chat room, whether associated or affiliated with the Company, as well as any other form of electronic communication.

Company principles, guidelines, and policies apply to online activities just as they apply to other areas of work, including but not limited to the Company's policy on harassment. Ultimately, you are solely responsible for what you communicate in social media. You may be personally responsible for any litigation that may arise should you make unlawful defamatory, slanderous, or libelous statements against any customer, manager, owner, or employees of the Company.

18.2 Know and Follow the Social Media Policy

Ensure your postings are consistent with these guidelines. Postings that include unlawful discriminatory remarks, harassment, and threats of violence or other unlawful conduct will not be tolerated and may subject you to disciplinary action up to and including termination.

Be Respectful

The Company cannot force or mandate respectful and courteous activity by employees on social media during nonworking time. If you decide to post complaints or criticism, avoid using statements, photographs, video, or audio that reasonably could be viewed as unlawful, slanderous, threatening, or that might constitute unlawful harassment. Examples of such conduct might include defamatory or slanderous posts meant to harm someone's reputation or posts that could contribute to a hostile work environment on the basis of race, sex, disability, age, national origin, religion, veteran status, or any other status or class protected by law or Company policy. Your personal posts and social media activity should not reflect upon or refer to the Company.

Maintain Accuracy and Confidentiality

When posting information:

- Maintain the confidentiality of trade secrets, intellectual property, and confidential commercially sensitive information (i.e. financial or sales records/reports, marketing or business strategies/plans, product development, customer lists, patents, trademarks, etc.) related to the Company.

- Do not create a link from your personal blog, website, or other social networking site to a Company website that identifies you as speaking on behalf of the Company.
- Never represent yourself as a spokesperson for the Company. If the Company is a subject of the content you are creating, do not represent yourself as speaking on behalf of the Company. Make it clear in your social media activity that you are speaking on your own behalf.
- Respect copyright, trademark, third-party rights, and similar laws and use such protected information in compliance with applicable legal standards.

18.3 Using Social Media at Work

Do not use social media while on your work time, unless it is work related as authorized by your manager or consistent with policies that cover equipment owned by the Company.

18.4 Media Contacts

If you are not authorized to speak on behalf of the Company, do not speak to the media on behalf of the Company. Direct all media inquiries for official Company responses to the Executive Team or Media personnel.

18.5 Retaliation and Your Rights

Retaliation or any other negative action is prohibited against anyone who reports a possible deviation from this policy or cooperates in an investigation. Employees who retaliate against other employees for reporting a possible deviation from this policy or for cooperating in an investigation will be subject to disciplinary action, up to and including termination.

Nothing in this policy is designed to interfere with, restrain, or prevent employees from communications regarding wages, hours, or other terms and conditions of employment, or to restrain employees in exercising any other right protected by law, including but not limited to the National Labor Relations Act. All employees have the right to engage in or refrain from such activities.

19.0 Remote Work Policy

19.1 Remote Practice:

- No new hires are eligible for remote work, regardless of position except on a temporary basis as part of a legally required accommodation.
- The Company will strive to continue offering remote work to existing employees who are currently working remotely. The remote working arrangement must be documented in a separate written agreement between the Company and employee which shall be consistent with this policy.
- Any employee working remotely must maintain a primary residence within 50 miles of a Contender Development or Blackstream office (depending on your employer).
- The Company will not reimburse for any travel expenses incurred for remote employees traveling to office locations.
- All remote work permitted under this policy must be performed from the employee's primary residence or such other location as the Company approves in writing in its sole discretion.

- All remote employees must attend all offsite project meetings pertaining but not limited to development, inspections, construction walk-throughs, etc.
- Remote work must not be conducted while on any form of leave.
- The Company reserves the right in its sole discretion to monitor remote employees in order to ensure work is being done in a satisfactory and timely manner.

19.2 Workspace

The Company will strive to make available a workspace for remote employees to conduct work on-site at one of the company's established offices.

19.3 Onsite Days / Meetings

Remote employees are required to work two days at a minimum from an established company office. Remote employees must additionally attend any required in-person meetings or events when scheduled by the Company in its sole discretion. The days an employee comes to the office will be arranged with their direct supervisor or manager.